

25STCV15519 25STCV15519

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Jae Ho Son v. Cenocore, Inc., et al.

Tuesday, September

15, 2026

[TENTATIVE] ORDER DEFENDANTS' MOTION

TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO FORM INTERROGATORIES-GENERAL, SET ONE; AND REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$882.50 AGAINST PLAINTIFF AND HIS COUNSEL (4886)

[TENTATIVE] ORDER DEFENDANTS'

MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO REQUESTS FOR ADMISSIONS, SET ONE; AND REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$945.00 AGAINST PLAINTIFF AND HIS COUNSEL (0845)

I.

BACKGROUND

Plaintiff

alleges wage and hour violations under the Labor Code. Defendants move to compel Plaintiff to provide further responses to general form interrogatories and requests for admission.

Defendants contend Plaintiff responded with "boilerplate" objections to interrogatory

2.6, evasive responses to interrogatory 12.1, and non-substantive responses to

interrogatory 17.1 although 44 of the 45 requests for admissions were not

unqualified admissions which therefore requires complete responses to

interrogatory 17.1. Defendants contend Plaintiff refuses to supplement despite

attempts to meet and confer. Defendants request imposition of monetary

sanctions.

With

respect to the requests for admission, Defendants contend that the response to 41 of 45 requests is are evasive, incomplete and do not comply with statute.

Plaintiff's

consolidated opposition to all discovery motions argues that Defendants failed to meaningfully meet and confer, that Plaintiff's responses are code compliant, and that the Court should impose monetary sanctions on Defendants.

II. LEGAL STANDARDS

The Court can grant a motion to compel

further responses to form interrogatories where the requesting party believes the responses are evasive and incomplete, that an objection is without merit, or an exercise of the option to produce documents is unwarranted. (Code Civ. Proc., sections 2030.300 subd. (a).) A party may move for an order

compelling further responses to requests for admission if the requesting party deems that the responses are evasive or incomplete or an objection is without merit or too general. (Code Civ. Proc., § 2033.290.)

III. DISCUSSION

A.

Meet and
confer

Defendants satisfied their

obligations to meet and confer. In response to Defendants' May 5, 2026 detailed letter, Plaintiff reiterated that Plaintiff was not supplementing discovery requests because Plaintiff believed the responses were adequate. (Pham opposing decl. Ex. 3.) This was preceded by numerous follow-up conversations about the discovery and other matters, including extensions of time for Plaintiff to respond to written discovery. (Id. Ex. 1, 2.)

B.

Form
interrogatories

FR 2.6. This interrogatory

requests the identity and address of Plaintiff's employers for the past five years. Plaintiff cites *Alch v. Superior Court* (2008) 165 Cal.App.4th 1412 wherein the Court of Appeal determined that a non-party's work history (e.g. names of employers, dates of employment, job titles, etc.) is protected by a right of privacy but subject to discovery where a "compelling need" is shown. (*Alch* at 1426-1427.)

Defendants have not

demonstrated why the information is generally relevant, much less Defendants' "compelling need" for Plaintiff's other work history information. This case seeks statutory penalties for Defendants' alleged failure to provide overtime, rest periods, and failure to provide and maintain accurate wage statements and records. Defendants' reply brief does not further elaborate on this issue. This interrogatory does not request foundational identifying witness information. (Reply 9:15-23.)

FR 12.1 The request for

identifying witness information with knowledge of the "incident" is relevant. Defendants' argument has merit. Defendants contend that "incident" as defined for employment law actions encompasses the circumstances and events giving rise to the action and identification of individuals with knowledge of Plaintiff's compensation arrangements and work schedule, at a minimum.

Plaintiff's "not applicable"

response is evasive.

FR 17.1 Plaintiff is required

to provide facts, witnesses, and supporting documentation for every response to a request for admission that is not an unqualified admission. Where a party denies an admission, the party is required to disclose the factual basis for that non-admission.

Plaintiff agrees that any

response to a request for admission based on personal knowledge may entitle Defendants to a proper response, but Plaintiff should not be compelled to disclose attorney work product or privileged information. Plaintiff concedes that "[a]t most, any further response should be limited to the specific RFAs for which Plaintiff provided a denial or qualified

response and should exclude privileged or protected information." (P's

(Opp. Sep. Stmt. 9:17-19.)

At issue here are 44 of the 45 requests for admission that Plaintiff denied. Defendants are entitled to the factual bases for each denial and supporting witness and evidentiary information.

C.

Requests

for admission 3, 4, 6, 7, 9-45.

None of Plaintiff's objections have merit. The statement that Plaintiff cannot or deny because it is irrelevant is not a code-compliant response. As Defendants observe, there are only three permissible answers: admit, deny, or if the responding party lacks information or knowledge, "that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter." (Cal. Code Civ. Procedure § CCP § 2033.220.)

Plaintiff's response that "[w]hether or not Plaintiff was subjected to any timekeeping or

attendance tracking requirements does not absolve Defendants of its record-keeping obligation" is not code compliant. The requests are relevant to Plaintiff's allegation that Defendants failed to abide by Labor Code requirements in a wage and hour case including the failure to provide accurate wage statements and records.

The response that Plaintiff "cannot or admit or deny because the request is irrelevant" is not a code-compliant response, nor is it a valid objection. The requests are relevant to the particular Labor Code violations alleged.

Plaintiff argues that an admission "does not, standing alone, establish Plaintiff's employment classification, the hours he worked, or whether Defendants complied with their independent obligations under California wage-and-hour law." (Opp. SS 2:24-28.) What Defendants can ultimately prove is irrelevant.

IV. CONCLUSION

Accordingly, Defendants'

motion to compel plaintiff's further responses to form interrogatories is

DENIED in part as to form interrogatory 2.6. The motion is GRANTED as to form interrogatories 12.1 and 17.1. Plaintiff is ordered to serve further responses within 10 days that are complete and code-compliant and without objections. The request for imposition of sanctions is granted, but in a reduced amount. Sanctions are imposed against Plaintiff and his counsel of record, Moon Law Group, PC, jointly and severally, in the amount of \$400 payable to Defendants within 10 days.

Defendants' motion to compel further

responses to requests for admission is GRANTED in full. Plaintiff is ordered to serve further, code-compliant responses within 10 days to requests 3, 4, 6, 7, 9-45, without objection. Sanctions of \$945 are imposed against Plaintiff and his counsel

of record, Moon Law Group, PC, jointly and severally, in the amount of \$945.00, payable to Defendants within 10 days.